

2:00 PM

LINE: 11

25-CIV-08970

JOHN DOE VS. MARINA ALLEN, ET AL

**JOHN DOE
MARINA ALLEN**

**LAUREL MOUSSEAU
CONNOR M DAY**

PLAINTIFF JOHN DOE’S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the following reasons, Plaintiff John Doe’s Motion for Leave to File a First Amended Complaint is **GRANTED** as to the proposed amended pleading attached to the Supplemental Declaration of Laurel Mousseau filed September 2, 2026.

The Court may, in furtherance of justice and upon such terms as may be proper, allow amendment of a pleading. (Code Civ. Proc., §§ 473, subd. (a)(1), 576.) California follows a policy of great liberality in allowing amendments to pleadings so that cases may be decided on their merits, provided the amendment does not prejudice the substantial rights of the opposing party. (*Board of Trustees of Leland Stanford Junior University v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.)

California Rules of Court, rule 3.1324 sets forth the procedural requirements for a motion for leave to amend, including the contents of the motion and supporting declaration. Plaintiff did not file a separate noticed motion following the Court’s order shortening time, apparently relying on the ex parte application, supporting declaration, proposed pleading, and the Court’s order setting the present hearing. Defendants nevertheless received notice, filed a substantive opposition, and do not contend that the absence of a separately filed notice of motion impaired their ability to oppose the requested amendment. Under these circumstances, the Court declines to deny leave based solely on that procedural irregularity.

Trial has not been set. Defendants principally contend that Plaintiff’s proposed PAGA amendments are legally insufficient and would cause unnecessary prejudice and additional discovery. In reply, however, Plaintiff submitted a revised proposed First Amended Complaint that omits the PAGA claim under Labor Code section 202, omits the challenged representative meal- and rest-period claims, omits the PAGA allegations against RxAccess LLC, and more specifically alleges the basis for PAGA and Labor Code section 558.1 liability against Defendant Marina Allen individually. These revisions substantially address the objections raised in Defendants’ opposition and correspond to the limitations Defendants alternatively requested.

No sufficient prejudice from permitting the revised amendment has been demonstrated, particularly where no trial date has been set. To the extent Defendants continue to challenge the legal sufficiency of the amended allegations, those issues are more appropriately addressed through a demurrer, motion for

judgment on the pleadings, or other appropriate responsive proceeding. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Accordingly, the Motion is **GRANTED**. Plaintiff shall file and serve the First Amended Complaint attached to the Supplemental Declaration of Laurel Mousseau filed September 2, 2026, within 10 days of notice of entry of the order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

**UD LAW AND MOTION CALENDAR
THURSDAY, SEPTEMBER 10, 2026**

2:00 PM

LINE: 1

26-UDU-00738

GRAND PRIX FIXED LESSEE LLC, A DELAWARE LIMITED LIABILITY COMPANY VS. DENISE WEEKS

**GRAND PRIX FIXED LESSEE LLC, A DELAWARE LIMITED LIABILITY COMPANY
DENISE WEEKS**

**THOMAS S. MCCONNELL
PRO SE**

PLAINTIFF GRAND PRIX FIXED LESSEE LLC, A DELAWARE LIMITED LIABILITY COMPANY'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

For the reasons stated below, Plaintiff Grand Prix Fixed Lessee LLC's Motion for Summary Judgment is **DENIED**.

A plaintiff moving for summary judgment bears the initial burden of establishing each element necessary to judgment and that there is no defense to the action. (Code Civ. Proc., § 437c, subd. (p)(1).) The absence of an opposition does not relieve the moving party of that burden.

Plaintiff has established the ordinary elements of unlawful detainer under Code of Civil Procedure section 1161, subdivision (2). The evidence establishes ownership, an oral day-to-day occupancy agreement, Defendant's failure to pay \$44,763 in room charges, service of a three-day notice demanding payment or possession, expiration of the notice period without payment or surrender, and Defendant's continued possession. The Three-Day Notice identifies the amount and period for which payment is sought, supplies the information required for payment, and expressly elects forfeiture of the occupancy agreement.

Plaintiff has not, however, established that Defendant's tenancy is exempt from the Tenant Protection Act of 2019. (Civ. Code, § 1946.2.) The verified Complaint alleges that the tenancy is exempt under Civil Code section 1940, subdivision (b)(2). That exemption requires more than operation of the premises as a hotel; it requires the innkeeper to retain a right of access and control and to provide or offer all of the services and circumstances enumerated in section 1940, subdivision (b)(2)(A)-(E). Plaintiff's moving evidence does not establish those statutory requirements.

The evidence instead establishes that Defendant continuously and lawfully occupied a room at the property beginning in 2020 and therefore exceeded the period of occupancy at which Civil Code section 1946.2's just-cause protections ordinarily apply. Although nonpayment constitutes at-fault just cause and Plaintiff's Three-Day Notice adequately identifies that ground, Plaintiff has submitted no evidence establishing compliance with the additional notice requirements of Civil Code section 1946.2, subdivision (f). Section 1946.2,

subdivision (g), provides that an owner's failure to comply with the section renders the written termination notice void.

Accordingly, Plaintiff has not carried its initial burden of establishing either that the tenancy is exempt from Civil Code section 1946.2 or, alternatively, that Plaintiff complied with the requirements applicable to a covered tenancy. Summary judgment is therefore **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

2:00 PM

LINE: 2

26-UDU-00847

BLUE WINDOW, LLC VS. REAL AUDITORY DISPLAY AUGMENTATION DEVICES,
INC, ET AL

BLUE WINDOW, LLC
REAL AUDITORY DISPLAY AUGMENTATION DEVICES, INC

DEAN C. ROSSI
ANTONY D NASH

PLAINTIFF BLUE WINDOW, LLC'S MOTION FOR SUMMARY ADJUDICATION OF ITS UNLAWFUL DETAINER CAUSE OF ACTION AND IMMEDIATE RIGHT TO POSSESSION

TENTATIVE RULING:

For the reasons stated below, Plaintiff Blue Window, LLC's Motion for Summary Adjudication is **GRANTED** as to its immediate right to possession against Defendant Real Auditory Display Augmentation Devices, Inc. ("RAD") pursuant to Code of Civil Procedure section 1161, subdivision (3).

The Court does not rely upon Plaintiff's separate nonpayment theory under section 1161, subdivision (2).

Plaintiff's Request for Judicial Notice is **GRANTED** as to the existence and contents of the court records, but not as to the truth of disputed factual matters contained therein. (Evid. Code, § 452, subd. (d).)

A valid statutory notice is a prerequisite to unlawful detainer, and the statutory notice requirements are strictly construed. (*Eshagian v. Cepeda* (2025) 112 Cal.App.5th 433, 457–459; *City of Alameda v. Sheehan* (2024) 105 Cal.App.5th 68, 75.) Plaintiff's Three-Day Notice to Pay Rent or Quit does not satisfy Code of Civil Procedure section 1161, subdivision (2), because it does not state the telephone number of the person to whom the rent payment is to be made. Accordingly, the Court does not grant summary adjudication on Plaintiff's nonpayment theory.

Plaintiff has, however, established its independent right to possession under section 1161, subdivision (3). Article 14 of the Lease prohibits RAD from subleasing or permitting third-party occupancy without Plaintiff's prior written consent. The Three-Day Notice to Perform Covenant or Quit specifically identified the unauthorized occupancy at 2608 Spring Street and required RAD, within the statutory period, to remove the unauthorized occupant, cease the unapproved occupancy arrangement, provide the required information concerning that arrangement, or surrender possession. The undisputed evidence establishes that Tyrants Volleyball LLC occupied a portion of the premises pursuant to its arrangement with RAD without Plaintiff's written consent and that RAD did not timely cure the violation or surrender possession.

RAD's prior representation that it had physically vacated does not establish a surrender of its tenancy or possessory rights. RAD requested documentation that would surrender possession and authorize Plaintiff to re-enter and relet the premises, but did not execute it. There is no evidence that RAD otherwise renounced its

possessory rights or relinquished its rights with respect to its subtenant before this action was commenced. (See *Briggs v. Electronic Memories & Magnetics Corp.* (1975) 53 Cal.App.3d 900, 904–906.)

The Court's ruling is limited to RAD. Although the proof concerning service of the statutory notices on Tyrants does not establish compliance with Code of Civil Procedure section 1162, subdivision (b)(3), that does not preclude relief against RAD where RAD remained in possession through its subtenant. (*Markham v. Fralick* (1934) 2 Cal.2d 221, 223–225; *Chinese Hospital Foundation Fund v. Patterson* (1969) 1 Cal.App.3d 627, 632.) The Court therefore does not adjudicate the sufficiency of statutory notice or service as to Tyrants.

Accordingly, Plaintiff is entitled to immediate possession of the premises as against RAD. Plaintiff may submit a possession-only judgment and writ of possession consistent with this ruling. Plaintiff's claims for unpaid rent, holdover damages, and other monetary relief are not adjudicated and remain pending for subsequent determination. (*Northrop Corp. v. Chaparral Energy, Inc.* (1985) 168 Cal.App.3d 725, 729–730.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order and possession-only judgment consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action. The Court directs the parties to San Mateo County Superior Court Local Rule 3.403(b)(iv) regarding the wording of proposed orders.

Posted: 3:00 P.M.

